

11.	<i>Legacy Medical Consultants, LP vs. Jim Seraj</i> 2025-01530373	Before the court is the continued hearing on the motion of defendant and judgment debtor Jim Seraj dba Illuminary Medical Group (Defendant) to vacate judgment entered on sister state judgment, or in the alternative, stay enforcement pending proceedings to set aside sister state judgment. The court originally heard the motion on May 7, 2026. Prior to that hearing, the court posted a tentative ruling to grant the motion as to the request for a stay of enforcement of the judgment pending resolution of a challenge to the underlying judgment in Texas. At the hearing, the parties reported they have reached a settlement of this matter and submitted a stipulation to continue the hearing on the motion to today's date. The court accepted that stipulation and continued the hearing to today. The parties have not filed any further documents since the last hearing. Accordingly, the parties are ordered to appear and update the court regarding the status of the settlement and this motion.
12.	<i>Trosper vs. Enloe</i> 2019-01086297	Before the court is the motion of defendants Breton Dirk Enloe, Laurel Enloe, Brady Enloe, Sesma Cleaners, Inc., and Rocio Roman (collectively, Defendants) to set aside the judgment entered on November 4, 2025 (ROA 170) following an unopposed trial in this matter. As more fully set forth below, the motion is GRANTED. Code of Civil Procedure section 473(b) states, "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." As a general rule, an attorney's inexcusable neglect is chargeable to the client. (<i>Carroll v. Abbott Laboratories, Inc.</i> (1982) 32 Cal.3d 892, 895.) There, however, is an exception to this rule: "[E]xcepted from the rule are those instances where the attorney's neglect is of that extreme degree amounting to positive misconduct, and the person seeking relief is relatively free from negligence. [Citations omitted.] The exception is premised upon the concept the attorney's conduct, in effect, obliterates the existence of the attorney-client relationship, and for this reason his negligence should not be imputed to the client.' [Citations.]" (<i>Id.</i> at p. 898.) The exception is narrowly applied. (<i>Id.</i> at p. 900.) "Despite the general rule which imputes the attorney's neglect to the client, there are exceptional cases in which the client, relatively free from

		personal neglect, will be relieved of a default or dismissal attributable to the inaction or procrastination of his counsel. [Citations.]” (<i>Daley v. Butte County</i> (1964) 227 Cal.App.2d 380, 391.) “An attorney’s authority to bind his client does not permit him to impair or destroy the client’s cause of action.” (<i>Ibid.</i>) Even where the lawyer's conduct amounts to abandonment, the court must consider other equitable factors, including the following: (a) client's own conduct; (b) prejudice to defendant;(c) whether the dismissal was mandatory or discretionary; (d) policy favoring a trial on the merits; (e) policy favoring finality of judgments; (f) policy disfavoring unreasonable delays in litigation; (g)policy that innocent clients should not have to suffer from their attorneys' gross negligence; and (h) policy that grossly incompetent attorneys should not be relieved from the consequences of their incompetence. (<i>Seacall Develop., Ltd. v. Santa Monica Rent Control Bd.</i> (1999) 73 Cal.App.4th 201, 205.) Positive misconduct by a party’s lawyer also may provide an equitable basis for relief from a judgment apart from section 473, subdivision (b), in appropriate cases. (See, e.g., <i>Aldrich v. San Fernando Valley Lumber Co., Inc.</i> (1985) 170 Cal.App.3d 725, 739.) Here, the foregoing factors weigh in favor of granting Defendants relief. Defendants were represented by Benjamin Hampton from the inception of the litigation, through two demurrers and multiple stipulations to continue trial. Defendants submit evidence showing that leading up to the October 28, 2024 trial, the defendants had done everything requested by counsel to prepare for the coming trial date and were prepared to go forward. This, however, apparently was the beginning of a series of misrepresentations by Mr. Hampton regarding case handling. It is clear from Laurel Enloe’s declaration, as well as the series of text messages attached thereto, at the same time as Mr. Hampton was submitting a stipulation to the court requesting a trial continuance based on his own schedule conflict, he was simultaneously telling the clients that court congestion was causing a brief delay. Based on the text messages, it appears Mr. Hampton did not have his client’s permission to enter into the stipulation which resulted in the trial being continued to September 15, 2025. In fact, long after the order continuing the trial was entered, Laurel Enloe continued to seek information about the case and it is apparent she continued to remain deceived by Mr. Hampton’s representation that “everything is under control.”
--	--	---

		Defendants were diligent in preparing for trial and trying to follow up with Mr. Hampton, but he did not keep them informed or finish preparing them for trial. Defendants also were diligent in pursuing this motion, filing it approximately one month after entry of judgment. Plaintiff points to prejudice as a factor to be considered, but Plaintiff does not identify any specific prejudice she would suffer or provide any evidence of prejudice. The only potential prejudice is the delay that will result and the expense of the one-day trial, but Plaintiff presents no evidence or argument to show that rises to the level of substantial prejudice sufficient to justify denying this motion. Accordingly, based on the court's balancing of the foregoing factors, the court finds they weigh in favor of granting Defendants relief, and therefore the motion is GRANTED. At the hearing, the court will assign this matter to a new judicial officer (the previously assigned judicial officer, Judge Larsh, has retired), and schedule a trial setting conference. Defendants' counsel is ordered to give notice of this ruling.
13.	<i>DMC Charter Service, LLC vs. Namdar</i> <i>2024-01399364</i>	On calendar is the continued hearing on the order to show cause and affidavit for contempt the court first signed and issued on January 5, 2026, ordering defendant and judgment debtor Bjian Namdar (Debtor) to appear in court and show cause why he should not be held in contempt of court for willfully failing to comply with the court's order. Specifically, the order to show cause was issued on the application of plaintiffs and judgment creditors DMC Charter Service, LLC and DeMarre Carroll (collectively, Creditors) based on Debtor's alleged willful failure to comply with the court's May 15, 2025 order for Debtor to respond to Creditors' request for production of documents and to produce all responsive documents. This matter was last on calendar on May 14, 2026. A few days before that hearing, Creditors filed a proof of service showing they had personally served Debtor with the order to show cause and all supporting documents. Debtor, however, did not appear for the May 14 hearing. Accordingly, the court continued the hearing to today's date with an admonition and caution to Debtor that they proceeding may proceed in his absence or a bench warrant may be issued for his arrest if he failed to appear today. Creditors submitted a new order to show cause with today's date that the court signed on June 10, 2026. Since the last hearing, the court has not received any proof of service or